

25TRCV02340 25TRCV02340

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Case Number: 25TRCV02340 Hearing Date: September 1, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

NORMAN SMITH

;

Petitioner,

vs.

USAA

CASUALTY INSURANCE COMPANY

;

Respondent.

Case

No.:

25TRCV02340

Hearing

Date:

September
1, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PETITIONER NORMAN SMITH'S MOTION TO QUASH
DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS

(2)

PETITIONER
NORMAN SMITH'S REQUEST FOR MONETARY SANCTIONS

MOVING PARTY: Petitioner, Norman Smith

RESPONDING PARTY: No opposition.

(1)

Petitioner

Norman Smith's Motion to Quash Deposition Subpoenas
for Production of Business Records is GRANTED IN PART pursuant to Code of Civil
Procedure section 1987.1, subdivision (a).

(2)

Petitioner

Norman Smith's Request for Monetary Sanctions is GRANTED in the reduced amount
of \$1,800.00 pursuant to Code of Civil Procedure section 1987.2, subdivision
(a).

The Court considers the moving papers filed on June 11, 2026. To date, no opposition brief has been filed.

BACKGROUND

Factual Background

On July 16, 2025, petitioner Norman Smith (“Petitioner”) filed the Petition to Compel Arbitration of Underinsured Motorist Claim against respondents USAA Casualty Insurance Company (“Respondents”) and DOES 1 through 10.

On July 23, 2026, Respondent filed the Notice of Change of Firm Name and Notice of Change of Lead Handling Attorney.

On June 30, 2026, Respondent filed the Substitution of Attorney – Civil, notifying the Court that the Law Office of Keevil L. Markham would no longer represent Respondent, and that Stephen C. Pasarow from Knapp, Petersen & Clarke would be taking over as counsel.

Relevant Background

On June 19, 2025, Petitioner’s counsel sent Respondent a demand package, which included a cover letter that explicitly identified the principal injury as a displaced bicondylar fracture of the left tibia, along with the resulting permanent impairment to the left lower extremity. (Declaration of Justin L. Gordon (“Gordon Decl.”), ¶ 4, Exh. A.) Furthermore, the letter specified that the injury occurred on September 24, 2023. (Gordon Decl., ¶ 4, Exh. A.)

On May 18, 2026, Respondent issued ten deposition subpoenas to pertinent medical facilities through Professional Document Services, Inc. (Gordon Decl., ¶ 7, Exh. B.)

On the same day, Petitioner sent a facsimile objecting to the subpoenas. (Gordon Decl., ¶¶ 9-10, Exhs. C-D.) Respondent’s counsel did not respond before Petitioner filed this motion. (Gordon Decl., ¶¶ 11-12.)

Procedural Background

On June 11, 2026, Petitioner filed the motion. To date, no opposition brief has been filed.

LEGAL STANDARD

Code of Civil Procedure section 1987.1, subdivision (a), provides: “If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court’s own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subd. (a).)

Pursuant to Code of Civil Procedure section 1987.2, subdivision (a), courts have the discretion to “award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2, subd. (a).)

DISCUSSION

Petitioner seeks to quash ten subpoenas issued by Respondent to the following entities and providers: (1) Los Angeles City Fire Department, EMS Records Custodian; (2) Blue Shield of California c/o Cogency Global, Inc.; (3) Harbor UCLA Medical Center – Medical Records; (4) Driftwood Healthcare & Wellness Center LLC; (5) Chong Kim, M.D.; (6) Torrance Memorial Medical Center – Medical Records; (7) Harbor UCLA Medical Center – Billing; (8) Harbor UCLA Medical Center – Radiology; (9) Torrance Memorial Medical Center – Billing; and (10) Torrance Memorial Medical Center – Radiology. (Motion, pp. i:24-ii:10.) Respondent has requested “any and all” medical and insurance records, as well as bills from these entities and providers, pertaining to “all dates.” (Motion, p.

1:21-27; Gordon Decl., ¶¶ 7-8, Exh. B.)

Petitioner presents three grounds for quashing or modifying the subpoenas, including: (1) “Respondent’s subpoenas violate Petitioner’s right to privacy[.]” (2) “[e]ach of Respondent’s ten subpoenas is, on its face, an overbroad demand for the entire medical, billing, insurance, or radiology history of a 75-year-old man[.]” and (3) public policy. (Motion, pp. 3:4, 4:24-25, 7:4.) The Court agrees that the requests specified in the subpoenas are overly broad. Consequently, the Court finds it appropriate to modify the deposition subpoenas.

Constitutional Right to Privacy

Article 1 of the California

Constitution recognizes a constitutional right to privacy, which “protects an individual’s reasonable expectation of privacy against a serious invasion.” (Faunce v. Cate (2013) 222 Cal.App.4th 166, 171.) Under California law, even highly relevant, non-privileged information may be shielded from discovery if its disclosure would violate a person’s inalienable right to privacy. (See *Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856.) The right to privacy protects the individual’s reasonable expectation of privacy against a serious invasion. (Pioneer Electronics (USA), Inc. v. Superior Court (2007) 40 Cal.4th 360, 370.) In general, when evaluating a discovery dispute that involves a privacy claim, the trial court should apply the framework outlined in *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1 (Hill).

First, a claimant must demonstrate that they have a “legally protected privacy interest.” (Hill, *supra*, 7 Cal.4th at p. 35.) Second, the claimant must show that they have a reasonable expectation of privacy given the circumstances, which include the customs, practices, and physical settings surrounding particular activities. (Id. at pp. 36-37.) Third, the invasion of privacy must be serious in terms of its nature, scope, and actual or potential impact. (Id. at p. 37.) If there is a reasonable expectation of privacy and the invasion of privacy is serious, then the court must balance the privacy interest at stake against other competing or countervailing interests. (Id. at pp. 37-40.)

The California Supreme Court

has clarified that when applying the Hill analysis, the initial burden of demonstrating a privacy interest rests with the party asserting such an interest. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) The Court has refuted case law that mandates a party seeking the discovery of private information to prove a compelling interest; instead, the responsibility lies with the party opposing the discovery to delineate the extent and seriousness of the anticipated invasion of privacy. (*Id.* at p. 557.) “What suffices to justify an invasion will...vary according to the context.” (*Ibid.*) Only obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest. (*Id.* at p. 556.)

Petitioner demonstrates the existence of a “legally protected privacy interest” that would warrant the exclusion of unrelated medical records. Petitioner’s argument primarily relies on the ruling in *Britt v. Superior Court* (1978) 20 Cal.3d 844, 864, which states that “while [the plaintiff] may not withhold information which relates to any physical or mental condition which they have put in issue by bringing this lawsuit, they are entitled to retain the confidentiality of all unrelated medical or psychotherapeutic treatment they may have undergone in the past.” (*Motion*, pp. 3:27-4:7.) Therefore, this ruling affirms Petitioner’s legally protected privacy interest with regard to unrelated medical or psychotherapeutic treatments.

However, Petitioner fails to demonstrate that this privacy interest extends to all requested records, including insurance records. The protection afforded to unrelated medical or psychotherapeutic treatments does not automatically apply to all other requested records. Thus, the Court will confine its constitutional analysis to the requests specifically pertaining to unrelated medical or psychotherapeutic treatments.

In relation to the remaining two factors, Petitioner provides no discussion concerning the reasonable expectation of privacy under the circumstances or the seriousness of the invasion of privacy. The Court will not make this argument on behalf of Petitioner and, as such, does not find that Petitioner’s constitutional right to privacy necessitates the quashing or modification of the subpoenas. Nonetheless,

the Court concludes that the subpoenas are overly broad.

Overbroad

As discussed, Respondent has requested “any and all” medical and insurance records, as well as bills from relevant entities and providers, pertaining to “all dates.” (Motion, p. 1:21-27; Gordon Decl., ¶¶ 7-8, Exh. B.) The Court finds that these requests are overly broad.

Petitioner contends that “Respondent has offered no justification -- in opposition to the meet and confer letter or otherwise -- for production of such private medical records. The case involves injuries arising from a single motor vehicle collision in September 2023. Respondent has known in writing since June 19, 2025 of the primary injury -- a displaced bicondylar fracture of the left tibia with resulting impairment to the left lower extremity -- along with the other injuries arising from the September 24, 2023 collision. Yet not a single one of Respondent’s subpoenas is limited to the body parts and conditions placed at issue by this litigation, or to any reasonable time period tied to the collision.” (Motion, p. 5:5-11.)

The Court agrees in part with this assertion. The Court finds that certain records are relevant to the collision that occurred on September 24, 2023, specifically those concerning Petitioner’s injuries to the left tibia and the “left lower extremity,” which Petitioner claims is permanently impaired. (Gordon Decl., ¶ 4, Exh. A.) Records that do not pertain to the left tibia and the “left lower extremity” involve body parts that are not relevant to this case.

Additionally, although Respondent has requested records for “all dates,” the Court only considers a ten-year period prior to the injury up to the present day to be relevant. This time frame will assist Respondent in determining whether Petitioner has previously sustained an injury to the same area of the left tibia and “left lower extremity.”

Thus, the Court concludes that records and billing pertaining to claims or injuries involving the left tibia and “left lower extremity” from September 24, 2013, to the present are relevant and discoverable. For clarity, the Court defines “left lower extremity” to encompass all parts from the left knee to the

toes of Petitioner's left foot.

Public Policy

Petitioner contends, "If

Respondent's approach were allowed, then essentially every document in every personal injury case would be subject to lifetime production on the theory that

something somewhere might be calculated to lead to admissible evidence. That is not the law." (Motion, p. 7:4-7.) The Court agrees that Respondent's strategy

of obtaining every medical record from an individual's life is contrary to

public policy and prevailing legal principles. However, the Court does not find sufficient grounds to quash the subpoenas. Instead,

it deems it appropriate to modify the subpoenas.

Consequently, the Court DENIES

Petitioner's request to quash the subpoenas in their entirety but agrees to

impose restrictions on the scope of the production. Accordingly, the Court GRANTS IN PART Petitioner's

motion to quash, allowing the subpoenaed entities and providers to produce only

those records and billing related to claims or injuries involving the left

tibia and "left lower extremity" from September 24, 2013, to the present.

Request for Sanctions

Petitioner requests \$2,025.00 in sanctions to cover attorney's fees

incurred in the filing of this motion. (Motion,

p. 7:8-22.) This request is made

pursuant to Code of Civil Procedure section 1987.2, subdivision (a). (Motion, p. 7:10-13.) The Court partially grants Petitioner's request.

"[I]n making an order pursuant

to motion made under subdivision (c) of Section 1987 or under Section 1987.1,

the court may in its discretion award the amount of the reasonable expenses

incurred in making or opposing the motion, including reasonable attorney's

fees, if the court finds the motion was made or opposed in bad faith or without

substantial justification or that one or more of the requirements of the

subpoena was oppressive." (Code Civ.

Proc., § 1987.2, subd. (a).)

The request

is supported by a declaration from Petitioner's counsel, Justin L. Gordon. In the declaration, Gordon indicates that

their hourly rate is \$450.00 and that they dedicated 3.0 hours to drafting the motion. (Gordon Decl., ¶ 13.) Gordon anticipates that an additional 0.5 hours will be required to draft a reply brief and another 1.0 hour to attend the hearing. (Gordon Decl., ¶ 13.)

Considering that the Court is granting this motion due to the oppressive nature of the subpoenas, the Court GRANTS Petitioner's request for sanctions against Respondent. However, the Court reduces the imposed sanction to \$1,800.00 to reflect 4.0 hours of work. This reduction is based on the fact that Petitioner did not file a reply brief. Respondent shall pay Petitioner's counsel \$1,800.00 by September 29, 2026.

ORDERS

1) Petitioner

Norman Smith's Motion to Quash Deposition Subpoenas for Production of Business Records is GRANTED IN PART. The subpoenaed entities and providers are to produce only those records and billing related to claims or injuries involving the left tibia and "left lower extremity" from September 24, 2013, to the present.

2) Petitioner

Norman Smith's Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,800.00.

3) Respondent USAA Casualty Insurance Company shall pay Petitioner's counsel \$1,800.00 by September 29, 2026.

4) Petitioner

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: September 1, 2026

Tamara
Hall

Judge
of the Superior Court